

Shailendra Kumar Dwivedi v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 April 2016 · WRIT - C No. - 17195 of 2016 · **Writ disposed; relegated to clause 6.5(b); recovery stayed; restore on deposit.**

HEADNOTE

A consumer who challenges recovery of electricity dues by disputing bill accuracy must use the complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The writ was disposed with liberty to complain within one week; the competent authority was to decide within two weeks; recovery was stayed for four weeks or until that disposal; and supply was to be restored forthwith after deposit.

FACTUAL SUMMARY

Shailendra Kumar Dwivedi filed a writ petition in the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. and two others. He challenged recovery proceedings initiated by the corporation for outstanding electricity dues and the correctness of the bill on which that recovery was founded. Counsel for both sides were heard. The connection was not in supply; restoration was sought alongside the challenge to the bill and the recovery.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

bill-accuracy-complaint

HOLDING

Clause 6.5(b) of the U.P. Electricity Supply Code, 2005 provides the complaint before the competent authority where a consumer disputes the accuracy of a bill. Because disputed questions of fact were involved and that remedy was available, the writ was disposed of with liberty to complain under clause 6.5(b) within one week; the authority was directed to consider and pass orders in accordance with law within two weeks; recovery was kept in abeyance for four weeks or until disposal of the complaint, whichever earlier; and the connection was to be restored forthwith after the petitioner deposited the amount. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A consumer who challenges recovery of electricity dues by disputing bill accuracy must use the complaint under clause 6.5(b) of the U.P. Electricity Supply Code, 2005.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED ELECTRICITY BILL AND THE RECOVERY DEMAND

Left to the competent authority on a clause 6.5(b) complaint. ¶ 1